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|    |                                                                         | <p>depend on additional factual assertions or anticipated discovery described in counsel's declaration.</p> <p>Defendants shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 5. | 2024-1391396<br>Marshall vs.<br>Volkswagen<br>Group of<br>America, Inc. | <p>Plaintiff Krystian Marshall's motion for attorney's fees is granted in part.</p> <p><u>Fees</u></p> <p>The Court begins with the lodestar: the number of hours reasonably expended multiplied by a reasonable hourly rate. The reasonable rate is the prevailing community rate for comparable work. (<i>PLCM Group v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.)</p> <p>In determining a reasonable hourly rate, the Court may consider its knowledge of the local legal market, counsel's experience, skill, and reputation, the difficulty of the work performed, and evidence of prevailing rates and awards in comparable cases. (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41; <i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009.)</p> <p>In <i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, a Song-Beverly action arising out of Orange County, the court noted that a \$650 hourly rate was "not an extraordinary, high hourly fee" and, rather, was a fee "we see somewhat routinely." (Id. at p. 350.) Similarly, in <i>Goglin v. BMW of North America, LLC</i> (2016) 4 Cal.App.5th 462, a Song-Beverly action arising out of San Diego, the court found the hourly rate of \$575 to be reasonable. (Id. at pp. 473-474.) In <i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, 1158, the court discussed a request using Orange County hourly rates of \$415 to \$500 and required proper application of the lodestar method.</p> <p>Thereafter, "Civil Code section 1794 'requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.'" (<i>Morris</i>, supra, 41 Cal.App.5th at p. 34 [internal quotation marks and citations omitted].) "A prevailing buyer has the burden of showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" (<i>Ibid.</i> [cleaned up internal quotations].)</p> <p>The Court considers whether the case was overstaffed and whether the time spent on particular tasks was reasonable. Inefficient, duplicative, or excessive work need not be compensated. (<i>Morris</i>, supra, 41 Cal.App.5th at p. 38.)</p> |

“[V]erified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.)

In support of the hourly rates claimed by each attorney who worked on this matter, Plaintiff’s counsel includes what seems to be a running tally of cases up to and including March 2026 (this motion was filed 3/26/26), where Plaintiff’s counsel received favorable attorney’s fees and rates. (See, exs. 1-31.) The billing records pertaining to this case were not addressed until ex. 34 (184 pages into the Plaintiff’s provided evidence).

Plaintiff requests rates which vary by attorney experience (9 different attorneys in total) and billing year. The attorneys who performed the majority of the work on this case were:

1. D. Mahnke, senior associate, 18.2 hrs. billed at \$400-\$425/hr. for 36.84% (Mtn, p. 10:5; Jacobson Decl., ¶¶ 40-41);
2. S. Hovahnnisyan, associate, 6.6 hrs. billed at \$395/hr. for 13.36% (Mtn., p. 10:8; Jacobson Decl., ¶¶ 44-45);
3. G. Sogoyan, partner, 5.5 hrs. at \$525/hr. for 11.13% (Mtn., p. 10:9; Jacobson Decl., ¶¶ 46-47); and
4. A. Jung, senior associate, 5.5 hrs. billed at \$400/hr., for 11.13% (Mtn., p. 10:11; Jacobson Decl., ¶¶ 50-51).

Combined, these four attorneys accounted for 72.46% of the work performed in this case. Based upon the foregoing and based upon the Court’s previous experiences with Lemon Law rates in Orange County, the Court finds a blended hourly rate of \$400/hr. to be reasonable for the attorneys who billed in this matter.

Plaintiff seeks compensation for 49.4 hours of attorney time. Plaintiff also requests an additional \$4,000 for reviewing the opposition, preparing the reply, and attending the hearing.

Defendant does not challenge the hours billed, other than to generally argue that the time spent was unreasonable.

The Court finds the 6.6 hours claimed for preparing this largely standardized fee motion excessive. Two hours reasonably compensates that work. The Court therefore reduces the compensable time by 4.6 hours.

The Court therefore reduces the compensable time to 44.8 hours (49.4 minus 4.6).

Based upon the blended rate of \$400/hour and the 44.8 recoverable hours, the recoverable attorney fees total \$17,920.

### Multiplier

Lastly, Plaintiff requests a 1.25 multiplier. As explained by the Court in *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, a lodestar figure may be “augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (*Id.* at p. 819.) “The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (*Ibid.*)

Applying a multiplier is discretionary. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 248.) “Of course, the trial court is not *required* to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) “In each case, the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment, e.g., because the client has agreed to pay some portion of the lodestar amount regardless of outcome. It should also consider the degree to which the relevant market compensates for contingency risk, extraordinary skill, or other factors under *Serrano III*.” (*Ibid.*)

“[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation.” (*Ketchum*, *supra*, 24 Cal.4th at p. 1139.)

Additionally, while the case was handled on a contingent fee basis, the one-sided mandatory statutory fee award reduced the risk otherwise inherent in a contingent fee case. (See *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1174-1175 [discussing FEHA fees award].)

The Court denies Plaintiff’s request for a multiplier, as the case did not involve any novel or difficult legal or factual issues. This was a

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|    |                                                                  | <p>simple lemon law action, which did not require any complex litigation.</p> <p><u>Conclusion</u></p> <p>Plaintiff is awarded total attorney fees of: \$17,920.</p> <p>Moving Party to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 8. | 2024-1432624<br>Hana Korean BBQ, LLC vs. Tenet Sac Holdings, LLC | <p>Defendants’ motion for judgment on the pleadings is granted as to the second cause of action for negligence, with 30 days’ leave to amend, and otherwise denied. Defendant Tenet Sac Holdings, LLC’s motion for leave to file a cross-complaint is granted.</p> <p><u>Motion for judgment on the pleadings</u></p> <p>A motion for judgment on the pleadings tests the legal sufficiency of the challenged pleading. The Court accepts properly pleaded material facts and reasonable inferences, but not conclusions of law. The complaint is read as a whole, including its attached exhibits. The grounds for the motion must appear on the face of the pleading or from matters properly subject to judicial notice. (Code Civ. Proc., § 438, subds. (c)–(d).)</p> <p>The motion challenges the first cause of action against Tenet, the second cause of action against all defendants, and the third and fourth causes of action against Vierergruppe Management and Continuum Analytics. It does not challenge the third or fourth cause of action against Tenet.</p> <p><u>First cause of action – breach of contract</u></p> <p>The motion is denied.</p> <p>Hana attaches the lease and alleges Tenet assumed the landlord’s obligations. It identifies failures to maintain the property and to provide annual statements and reconciliation of common area maintenance charges. (Complaint, ¶¶ 10–17, 20–22.) These allegations identify contractual duties and asserted breaches sufficiently to withstand this motion. In particular, section 13.6(b) requires an annual statement of actual common area expenses and a reconciliation of the tenant’s estimated payments.</p> <p>The lease’s notice-and-cure provisions are material. Section 12.1 conditions liability for specified repairs on written notice and a reasonable opportunity to perform them. Section 19.4 requires written notice of a landlord default and an opportunity to cure. Section 27.30 also addresses notice and an opportunity to cure before the tenant pursues a separate action.</p> |